



File No.: EXP202310092

RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on July 6, 2023, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On July 6, 2023, a complaint was received by this Agency filed by Mr. A.A.A. (hereinafter, the complainant) against the HEALTH DEPARTMENT OF THE COMMUNITY OF MADRID (hereinafter, the respondent) for not having duly attended to the right of access to his medical history.

The complainant states that on April 10, 2023, he requested from the Infanta Sofia University Hospital located in San Sebastián de los Reyes access to copies of the informed consents signed for two medical tests performed on him (a CT scan in December 2022 and surgery in March 2023) and that on May 23, 2023, he was provided with the medical reports of the surgical intervention from March 2023, but was not given the requested consents.

Furthermore, the complainant asserts that during the surgical intervention in March 2023, there was healthcare personnel who took images on his personal mobile phone without his consent. Therefore, through emails dated May 23 and 25, 2023, addressed to protecciondedatos.sanidad@madrid.org, he requested access to the material that may have been filmed during the surgical intervention.

On May 25, 2023, the respondent replied requesting documentation to verify his identity (ID or equivalent valid document), a copy of which was provided by the complainant on the same day.

The complainant states that he has not received a response.

SECOND: On December 1, 2023, a new document was received by this Agency from the complainant providing a copy of a new request he made to the hospital center on September 22, 2023, requesting "Exercising my ARCO rights under the LOPD-RGPD law for access and cancellation of the photographs taken without my consent during the catheterization:

I want to know if those photographs have been shared and with whom they have been shared.

I want to know the full name of the person who took the photographs.

I want all photographs taken of me to be deleted from your systems."

THIRD: In accordance with Article 65.4 of the LOPDGDD, this complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations, with no response recorded.

FOURTH: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the complainant's claims were satisfied. Consequently, on October 6, 2023, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing.

The aforementioned agreement granted the respondent a hearing period, to present any arguments they deemed appropriate within ten working days.

The respondent indicates that from the Infanta Sofia University Hospital (hereinafter, HUIS), as the data controller, "(...) provides the interested party on April 10, 2023, with information regarding his medical history as can be seen in 'Annex I - Informed consents received,' the interested party attending to withdraw it on May 23, 2023, indicating his disagreement with the documentation of his medical history that was provided to him."

Regarding this disagreement, the center conducted the necessary investigations to properly address and complete the exercise of the right of access requested by the interested party according to his indications, and/or, if applicable, to provide an adequate response to his request, as can be seen in the electronic communications of "Annex II – Email Transfer Services." Thus, the Clinical Archive and Documentation Service confirms that there were no such documents regarding the interested party, and this was communicated to the Patient Care Service of the Infanta Sofia Hospital.

Subsequently, the interested party exercised his right of access again, this time regarding the

photographs taken during a medical intervention. After the necessary procedures to incorporate them into an accessible and secure format, copies of the images were made available to the interested party on July 18, 2023, which he collected on July 21, 2023, without providing any additional comments in this regard (...)."

"(...) The data controller, after managing and investigating the facts (...) proceeds to send written communication on November 8, 2023 (see 'Annex IV - Communication to the interested party') in which, among other aspects of a care nature, he is informed of the following: '[...] having requested a copy of the informed consents for the CT scan of December 2022 and the surgery of March 2023, first of all, we apologize for our delay in issuing this response and we inform you that you have a copy of the consent available.'

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informed of the TAC carried out on December 19, 2022, in our Patient Care Service, which you can collect by coming with your ID card (...) or by the person you authorize in writing and expressly, who must provide their ID card and a copy of your ID card.

Regarding the informed consent for surgery from March 2023, the Imaging Diagnostic Service clarifies that no surgery has been performed. On the indicated date (March 2023), there is a record of a vascular radiology procedure [...].

FOURTH: After examining the document submitted by the responding party, it is forwarded to the claiming party, so that, within ten working days, they may formulate any allegations they deem appropriate.

The claiming party stated, in summary, that "(...) They still have not provided me with a copy of my informed consent for the test - catheterization - that was performed on March 30, 2023."

Furthermore, they reiterate that "(...) I have always made it very clear and in writing that I do not want photographs and/or videos to be taken."

"(...) The photographs were taken by a doctor with her personal mobile phone (at least I know that one doctor took photographs. I do not know, to this day, if anyone else present in the operating room took photographs and/or videos). This doctor subsequently shares the photographs via WhatsApp with someone from the hospital, who uploads them to the hospital system and provides me with copies of them (how do I know they were shared via WhatsApp? Because when I was given copies of the photographs, the names of each photograph appeared, just as they appear when downloaded to the mobile phone upon receiving the files through the WhatsApp application)."

The claiming party indicates that they still have not received a response to "(...) who have my photographs been shared with? and (...) have my photographs been deleted from your system? Have they been deleted from all devices, emails, WhatsApp, etc., personal and professional (hospital, personal hard drives, personal and professional emails, etc.)?"

FIFTH: After granting a hearing to the responding party, they have provided a copy of the report issued by the hospital center in which, in summary, they indicate that "(...) the images were taken by a single authorized professional from the staff in the room and not by students, since, in the event that students attend this type of technique, they are never allowed to take photographs in the room. Likewise, it is specified that the images taken were regarding the necessary material and the way it was prepared to carry out the intervention on the patient, not allowing the identification of the patient in question through them."

The Health Department of the Community of Madrid continues to indicate that "(...) The purpose of taking these images was educational, (...) to demonstrate how the work table is prepared (...)" . These accompanied a presentation that was used in a single general session of the HUIS on April 28, 2023, where the services of Endocrinology, Vascular Radiology, and General Surgery participated, members of the multidisciplinary team that addresses cases of hyperaldosteronism.

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primary (HAP). This demonstrates compliance with the principle of purpose limitation of processing attributable to the controllers in accordance with [art.5.1.b) GDPR].

Regarding the communication of such images via mobile instant messaging application, they have not been provided to third parties other than the claimant (to whom they were delivered on 21/07/2023) at any time, neither through digital channels nor in physical format. They were simply used in the training presentation by the same professional who created them, being the training session the only moment they were viewed by other professionals, without the possibility of identifying the patient through them. The HUIS, as the data controller and in compliance with the principle of limitation of the retention period that obliges it [art.5.1.e) GDPR], proceeds to delete the photographs, as well as the PowerPoint presentation used in the training session once it had been delivered. This is evidenced by the UCR in Annex I indicating that, to address the claimant's request for the right of access, it was necessary to recover those images to provide a copy of them in accordance with art.15.3 GDPR."

Regarding the informed consents requested by the claimant, the responding party states that "(...) on 08/11/2023, a communication was sent to the claimant expressly indicating that the Informed Consent for CT is available for collection. Similarly, it is informed that the Informed Consent for vascular radiology is pending location."

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, among them, to enforce the Regulation and promote awareness among controllers and processors regarding the

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obligations that fall upon them, as well as addressing the claims submitted by an interested party and investigating, in a timely manner, the reasons for such claims.

Correspondingly, Article 31 of the GDPR establishes the obligation for controllers and processors to cooperate with the supervisory authority that requests it in the performance of their functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission for processing of the claim regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to the present procedure, the claim was forwarded to the party being complained against for them to analyze it, respond to this Agency within one month, and provide proof of having given the claimant the appropriate response.

The result of this forwarding did not satisfy the claims of the complaining party. Consequently, on October 6, 2023, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the claim

submitted was admitted for processing. This admission for processing determines the opening of the present procedure for failure to address a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

“When the procedure refers exclusively to the failure to address a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure will be six months from the date on which the claimant was notified of the admission agreement. After this period, the interested party may consider their claim accepted.”

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers for the purpose of rectifying any infringement of the GDPR, including “ordering the controller or processor to address the requests for the exercise of the rights of the interested party under this Regulation.”

III

Rights of individuals regarding personal data protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

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Furthermore, consideration is given to the statements made in Recitals 59 and following of the GDPR. In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and must express its reasons in case it does not intend to comply with such request. The burden of proof regarding compliance with the obligation to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication directed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right of Access

In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, “the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data.”

Regarding the right of access to personal data, according to the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the controller may request the affected party to specify the “data or processing activities to which the request refers.” The right shall be deemed granted if the controller provides remote access to the data, considering the request fulfilled (although the data subject may request information regarding the aspects provided in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a six-month period, unless there is a legitimate reason for doing so. On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that incurs a disproportionate cost, which must be borne by the affected party.

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal

data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the available information about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decisions,

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including the preparation of profiles, and information on transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data subject to processing shall not adversely affect the rights and freedoms of others.

The right of access concerning the medical history is specifically regulated in Article 18 of Law 41/2002, of November 14, which is the basic regulatory law on Patient Autonomy and Rights and Obligations in the Field of Information and Clinical Documentation (hereinafter LAP), the literal text of which states:

"1. The patient has the right of access, with the reservations indicated in section 3 of this article, to the documentation of the medical history and to obtain a copy of the data contained therein. Health centers shall regulate the procedure that guarantees the observance of these rights.

2. The patient's right of access to the medical history may also be exercised by duly accredited representation.

3. The patient's right of access to the documentation of the medical history cannot be exercised to the detriment of the right of third parties to the confidentiality of the data contained therein collected in the therapeutic interest of the patient, nor to the detriment of the rights of the professionals involved in its preparation, who may oppose the right of access based on the confidentiality of their subjective notes.

4. Health centers and individual practitioners shall only facilitate access to the medical history of deceased patients to persons linked to them, for family reasons or de facto, unless the deceased expressly prohibited it and this is evidenced. In any case, access by a third party to the medical history motivated by a risk to their health shall be limited to the relevant data. Information affecting the privacy of the deceased or the subjective notes of the professionals, or that harms third parties, shall not be provided."

In this regard, it is important to highlight Article 15 of the LPA, which outlines the minimum content of the medical history:

"1. The medical history shall include information that is deemed essential for the truthful and updated knowledge of the patient's health status. Every patient or user has the right to have a record, in writing or in the most appropriate technical support, of the information obtained in all their care processes, carried out by the health service both in the primary care and specialized care settings.

2. The main purpose of the medical history shall be to facilitate healthcare, recording all data that, under medical criteria, allow for the truthful and updated knowledge of the health status.

The minimum content of the medical history shall be as follows:

a) Documentation related to the clinical-statistical sheet.

b) Admission authorization.

c) Emergency report.

d) Anamnesis and physical examination.

e) Evolution.

f) Medical orders.

g) Consultation sheet.

h) Reports of complementary examinations.

i) Informed consent.

j) Anesthesia report.

k) Operating room or delivery record.

- l) Pathological anatomy report.
- m) Nursing care evolution and planning.
- n) Therapeutic nursing application.
- ñ) Vital signs chart.
- o) Clinical discharge report.

Paragraphs b), c), i), j), k), l), ñ), and o) shall only be required in the completion of the medical history when it concerns hospitalization processes or as stipulated.

3. The completion of the medical history, in aspects related to direct patient care, shall be the responsibility of the professionals involved in it.

4. The medical history shall be maintained with criteria of unity and integration, in each healthcare institution at a minimum, to facilitate the best and most timely knowledge by the professionals of the data of a particular patient in each care process."

Regarding the preservation of the medical history, Article 17 of the LPA, in its points 1 and 5, states:

"1. Health centers have the obligation to preserve clinical documentation under conditions that guarantee its proper maintenance and security, although not necessarily in the original support, for the proper assistance to the patient for the time appropriate to each case and, at a minimum, five years from the date of discharge of each care process (...)

5. Healthcare professionals who carry out their activity individually are responsible for the management and custody of the care documentation they generate."

V

Right to Erasure

Article 17 of the GDPR, which regulates the right to erasure of personal data, establishes the following:

"1. The data subject shall have the right to obtain from the controller the erasure of personal data concerning them without undue delay, and the controller shall be obliged to erase personal data without undue delay when one of the following circumstances applies:

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a) personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;

b) the data subject withdraws consent on which the processing is based in accordance with Article 6(1)(a) or Article 9(2)(a), and this is not based on another legal ground;

c) the data subject objects to the processing under Article 21(1), and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing under Article 21(2);

d) personal data have been unlawfully processed;

e) personal data must be erased for compliance with a legal obligation established in Union or Member State law applicable to the controller;

f) personal data have been collected in relation to the offer of information society services referred to in Article 8(1).

2. When the controller has made the personal data public and is obliged, under the provisions of paragraph 1, to erase such data, the controller, taking into account the available technology and the cost of implementation, shall take reasonable measures, including technical measures, to inform controllers that are processing the personal data of the data subject's request for erasure of any links to those personal data, or any copies or replications of them.

3. Paragraphs 1 and 2 shall not apply when the processing is necessary:

a) for exercising the right to freedom of expression and information;

b) for compliance with a legal obligation requiring processing of data imposed by Union or Member State law applicable to the controller, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;

c) for reasons of public interest in the area of public health in accordance with Article 9(2)(h) and (i), and paragraph 3;

d) for archiving purposes in the public interest, scientific or historical research purposes, or statistical purposes, in accordance with Article 89(1), insofar as the right referred to in paragraph 1 is likely to render impossible or seriously impede the achievement of the objectives of that processing, or
e) for the establishment, exercise, or defense of legal claims.

VI

Conclusion

The rights procedure is initiated as a result of the denial of any of the rights regulated in data protection legislation. Therefore, in this case, only the facts relating to the requested rights will be analyzed and assessed, excluding other issues.

The Guidelines 1/2022, in their version of March 28, 2023, from the European Data Protection Board, state that

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“3. Under the GDPR, the right of access consists of three components, namely, the confirmation of whether or not personal data is being processed, access to the data itself, and information about the processing. The data subject may also obtain a copy of the personal data being processed; however, this possibility is not an additional right of the data subject but rather a means of providing access to the data. Therefore, the right of access can be understood both as the possibility for the data subject to ask the data controller whether personal data concerning them is being processed, and as the possibility to access and verify this data. The data controller shall provide the data subject, based on their request, with the information included within the scope of Article 15, paragraphs 1 and 2, of the GDPR.

(...)

16.1.1.

Definition of the content of the right of access

17. Article 15, paragraphs 1 and 2, contains the following three aspects: first, the confirmation of whether the personal data of the requesting individual is being processed; second, access to that data; and third, information about the processing. These can be considered as three different components that together constitute the right of access.

17.1.1.1. Confirmation of whether or not personal data is being processed

18. When making a request for access to personal data, the first thing that data subjects need to know is whether the data controller is processing the data concerning them. Consequently, this information constitutes the first component of the right of access under Article 15, paragraph 1. When the data controller does not process personal data related to the data subject requesting access, the information provided will be limited to confirming that no personal data related to the data subject is being processed. When the data controller processes data related to the requesting individual, the data controller must confirm this fact to that individual. This confirmation may be communicated separately or may be included as part of the information regarding the personal data being processed (see below).

2.2.1.2 Access to the personal data being processed

19. Access to personal data is the second component of the right of access under Article 15, paragraph 1, and constitutes the core of this right. It refers to the notion of personal data as defined in Article 4, paragraph 1, of the GDPR. Aside from basic personal data, such as name and address, an unlimited variety of data may be included in this definition, as long as it falls within the material scope of the GDPR, particularly regarding how it is processed (Article 2 of the GDPR). Access to personal data means access to

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the actual personal data, not just a general description of the data or a mere reference to the categories of personal data processed by the data controller. If no limits or restrictions apply, data subjects have the right to access all data processed concerning them, or parts of the data, depending on the scope of the request (see sec. 2.3.1). The obligation to provide access to the data does not depend on the type or source of such data. It applies in full even in cases where the requesting individual initially provided the data to the data controller, as its purpose is to inform the data subject about the actual processing of such data by the data controller. The scope of personal data under Article 15 is explained in detail in sec. 4.1 and 4.2.

(...)

2.3 General principles of the right of access

34. When data subjects submit a request for access to their data, in principle, the information referred to in Article 15 of the GDPR must always be provided in its entirety. Consequently, when the data controller processes data relating to the data subject, the data controller shall provide all the information referred to in Article 15, paragraph 1, and, where applicable, the information referred to in Article 15, paragraph 2. The data controller must take appropriate measures to ensure that the information is complete, accurate, and up to date, as close as possible to the state of data processing at the time of receiving the request. When two or more data controllers process data jointly, the arrangement of the joint controllers regarding their respective responsibilities in relation to the exercise of the rights of the data subject, especially regarding the response to access requests, does not affect the rights of the data subjects against the data controller to whom they direct their request.

2.3.1 Completeness of the information

35. Data subjects have the right to obtain, with the exceptions mentioned below, the complete disclosure of all data relating to them (for more details on the scope, see section 4.2). Unless the data subject expressly requests otherwise, the request to exercise the right of access shall be understood in general terms, covering all personal data relating to the data subject. Limiting access to part of the information may be considered in the following cases:

a) The data subject has explicitly limited the request to a subset. To avoid providing incomplete information, the data controller may only consider this limitation of the data subject's request if it can be sure that this interpretation corresponds to the will of the data subject (for more details, see section 3.1.1, para. 51). In principle, the data subject will not have to repeat the request for transmission of all data that the data subject has the right to obtain.

b) (...)

42.1.1. Analysis of the content of the request

43. This issue can be evaluated more specifically by asking the following questions.

a) Does the request refer to personal data?

44. Under the GDPR, the scope of the request will only cover personal data. Therefore, any request for information on other matters, including general information about the data controller, its business models, or its processing activities unrelated to personal data, will not be considered a request made in accordance with Article 15 of the GDPR. Furthermore, a request for information about anonymous data or data that does not concern the requesting individual or the person on whose behalf the authorized individual made the request will not fall within the scope of the right of access. This question will be analyzed in more detail in section 4.

45. Unlike anonymous data (which is not personal data), pseudonymous data, which could be attributed to a natural person through the use of additional information, is personal data. Therefore, pseudonymous data that can be linked to a data subject, for example, when the data subject provides the respective identifier that allows their identification, or when the data controller can connect the data to the requesting individual by their own means, must be considered within the scope of the request.

(...)

e) Do the data subjects wish to access all or part of the information processed about them?

51. Furthermore, the data controller must assess whether the requests made by the requesting individuals refer to all or part of the information processed about them. Any limitation of the scope of a request to a specific provision of Article 15 of the GDPR, made by the data subjects, must be clear and

unequivocal. For example, if the data subjects literally require "information about the data processed concerning them," the data controller must assume that the data subjects intend to fully exercise their right under Article 15, paragraphs 1 to 2, of the GDPR. Such a request should not be interpreted as meaning that the data subjects wish to receive only the categories of personal data being processed and waive their right to receive the information listed in Article 15, paragraph 1, letters a) to h). This would be different, for example, when the data subjects...

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They wish, with respect to the data they specify, to have access to the source or origin of the personal data or to the specified storage period. In such cases, the data controller may limit their response to the specific information requested."

(...)

4.2 Personal data to which the right of access refers

102. In accordance with Article 15, paragraph 1, of the GDPR, "the data subject shall have the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, where that is the case, access to the personal data and the following information."

103. Several elements can be inferred from paragraph 1 of Article 15 of the GDPR. In the section, it refers expressly to "the personal data concerning them" (4.2.1), which "is being processed" (4.2.2) by the data controller:

(...)

4.3 Information on processing and on the rights of the data subject

114. The information on the purposes pursuant to Article 15, paragraph 1, letter a), must be specific regarding the precise purpose or purposes in the actual case of the requesting data subject. It would not suffice to list the general purposes of the data controller without clarifying what purposes the data controller pursues in the current case of the requesting data subject. If the processing is carried out for multiple purposes, the data controller must clarify which data or which categories of data are processed for which purposes. Unlike Article 13, paragraph 1, letter c), and Article 14, paragraph 1, letter c), of the GDPR, the information on processing referred to in Article 15, paragraph 1, letter a), does not contain information on the legal basis for the processing. However, since the rights of some data subjects depend on the applicable legal basis, this information is important for data subjects to verify the legality of the data processing and determine which rights of the data subject are applicable in the specific situation. Therefore, to facilitate the exercise of the rights of data subjects in accordance with Article 12, paragraph 2, of the GDPR, it is recommended that the data controller also inform the data subject about the applicable legal basis for each processing operation or indicate where this information can be found. In any case, the principle of transparent processing requires that information on the legal bases for processing be made available to the data subject in an accessible manner (for example, in a privacy notice).

(...)

116. The information on "recipients or categories of recipients" (Article 15, paragraph 1, letter c)) must take into account, first and foremost, the definition of recipient as set out in Article 4, paragraph 9, of the GDPR. The definition of recipient is based on the disclosure of personal data to a natural or legal person, public authority, agency, or other body. From Article 4, paragraph 9, of the GDPR, it follows that public authorities acting within the framework of a specific investigation subject to specific national provisions should not be considered recipients.

(...)

120. In accordance with Article 15, paragraph 1, letter g), "any available information" about the source of the data must be provided when the personal data has not been collected from the data subject. The degree of available information may change over time."

In the present case, and considering what is indicated in the first paragraph of this Legal Basis, from

the examination of the documentation provided, it has been established that the complaining party requested access to part of their medical history (two informed consents), and that this access has been partially addressed during the processing of the present procedure, with no record that it has been provided in full.

Furthermore, the complaining party requested access regarding the identification of the individuals who took images of them without their consent, as well as the deletion of such images. The responding party provided the complaining party with a copy of those images, and during the present procedure, stated that the images were taken by healthcare personnel and that they have been deleted. However, they have not provided any documentary evidence that allows for the consideration that they have expressly responded to the complaining party informing them of this circumstance, as established by Article 12.4 of the GDPR.

The aforementioned rules do not allow for the request to be overlooked as if it had not been made, leaving it without the response that the controllers are obliged to issue, even in cases where there are no data in the files or even in those cases where it does not meet the stipulated requirements, in which case the recipient of such a request is also obliged to require the rectification of the observed deficiencies or, where appropriate, to deny the request with justification indicating the reasons why the right in question should not be considered.

Therefore, the request made obliges the controller to provide an express response in all cases, using any means that justifies the receipt of the response.

Given that no copy of the necessary communication that must be directed to the complaining party informing them about the decision made regarding the request for the exercise of rights is attached, it is appropriate to uphold the complaint that initiated the present procedure.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

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FIRST: TO ESTIMATE the claim made by Mr. A.A.A. considering that the provisions of Articles 15 and 17 of the GDPR have been infringed and to urge the MINISTRY OF HEALTH OF THE COMMUNITY OF MADRID with NIF S7800001E, to send, within ten working days following the notification of this resolution, a certification to the claiming party addressing the requested rights or denying them with justification indicating the reasons why the requests cannot be met, in accordance with the provisions established in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription under Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: TO NOTIFY this resolution to Mr. A.A.A. and to the MINISTRY OF HEALTH OF THE COMMUNITY OF MADRID.

In accordance with the provisions established in Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions established in Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

1381-090823

Mar España Martí
Director of the Spanish Agency for Data Protection
C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es